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Document Type	Plan
Document Identification	PS744342V
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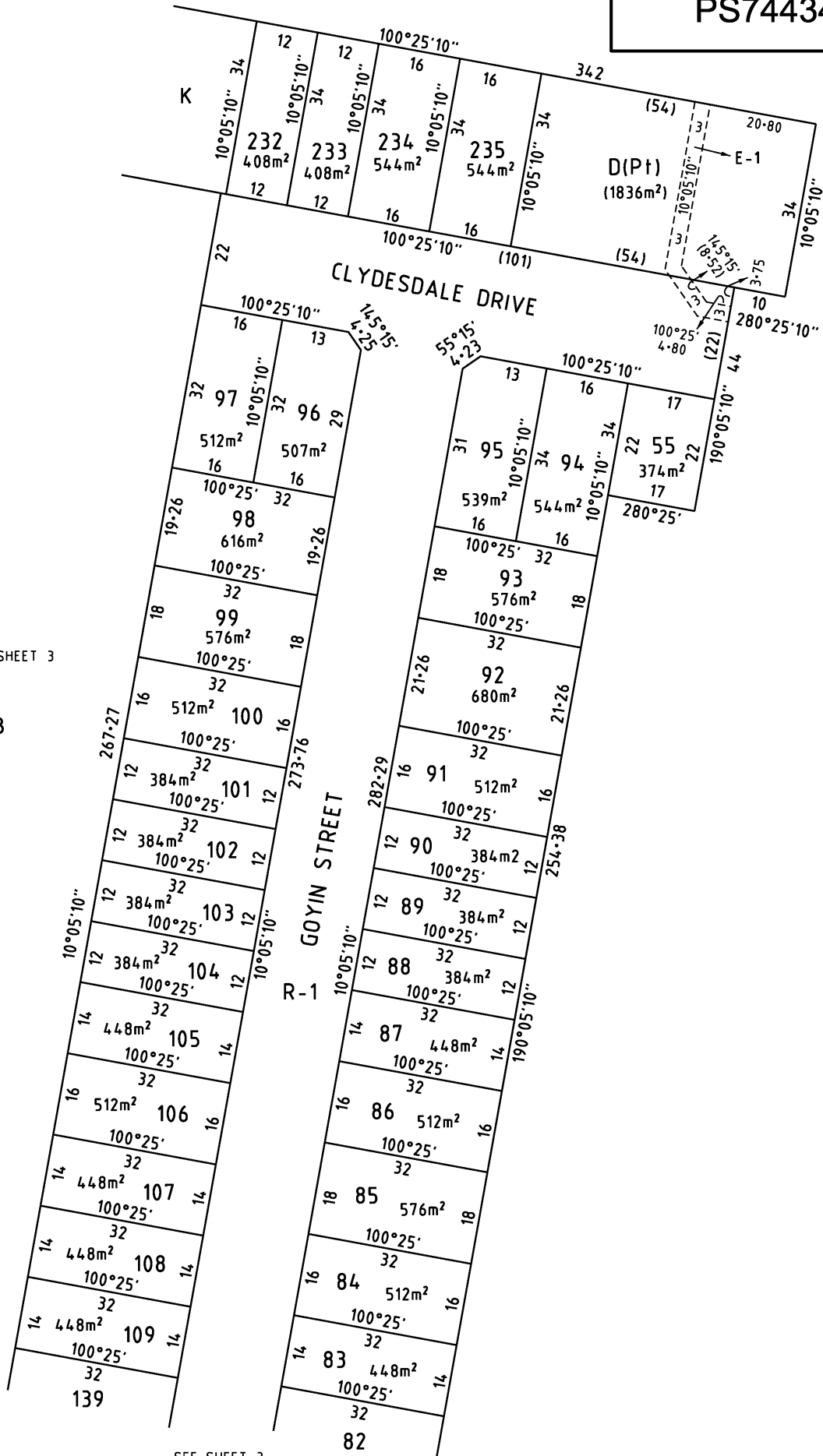
PLAN OF SUBDIVISION			EDITION 1	PS744342V	
LOCATION OF LAND PARISH: Cardigan TOWNSHIP: — CROWN ALLOTMENT: 2018 (Part) SECTION: 5 CROWN ALLOTMENT: 7 & 8 (Part) SECTION: 2A CROWN ALLOTMENT: 2 & 3 (Part) TITLE REFERENCE: Vol.11589 Fol.276, Vol.11651 Fol.906, Vol.11651 Fol.907, Vol.11651 Fol.908 Vol. 11693 Fol. 969 LAST PLAN REFERENCE: PS723410Y (Lot J), PS744356J (Lot 2), PS723414Q (Lots B, C & D) POSTAL ADDRESS: Tait Street (at time of subdivision) Bonshaw 3350 MGA CO-ORDINATES: E: 748900 ZONE: 54 (of approx centre of land N: 5834600 GDA 94 in plan)			Council Name: Ballarat City Council Council Reference Number: PSD2016078 Planning Permit Reference: PLP/2013/744 SPEAR Reference Number: S085020T Certification This plan is certified under section 6 of the Subdivision Act 1988 Statement of Compliance This is a statement of compliance issued under section 21 of the Subdivision Act 1988 Public Open Space A requirement for public open space under section 18 of the Subdivision Act 1988 has not been made Digitally signed by: Rebecca Carter for Ballarat City Council on 30/06/2017		
VESTING OF ROADS AND/OR RESERVES			NOTATIONS		
IDENTIFIER	COUNCIL/BODY/PERSON		<u>Other Purpose of Plan:</u> Creation of Restriction as shown on sheet 4. Lots 1 - 54, 56 - 74, 110 - 138, 145 - 231, 236 - 250 & 252 - 254 are omitted from this plan.		
Road R-1	Ballarat City Council				
Reserve No.1	Ballarat City Council				
NOTATIONS					
DEPTH LIMITATION:					
30.48m applies C.A.'s 2 & 3. 15m applies C.A.2018					
SURVEY: This plan is based on survey. Refer BP2768 STAGING: This is not a staged subdivision. Planning Permit No. PLP/2013/744 This survey has been connected to permanent marks No(s). 30, 43, 67, 124, 859 1085 & 1317 In Proclaimed Survey Area No.49					
EASEMENT INFORMATION					
LEGEND: A - Appurtenant Easement E - Encumbering Easement R - Encumbering Easement (Road)					
Easement Reference	Purpose	Width (Metres)	Origin	Land Benefited/In Favour Of	
E-1	Drainage	3	PS723410Y	Ballarat City Council	
 Beveridge Williams development & environment consultants 96 Main Road Ballarat PO Box 1465 Bakery Hill 3354 Ph:53272000 Fax:53272099		SURVEYORS FILE REF: 1200878 Digitally signed by: ben long (Beveridge Williams & Co Pty Ltd - Ballarat), Surveyor's Plan Version (04), 20/06/2017, SPEAR Ref: S085020T		ORIGINAL SHEET SIZE: A3	SHEET 1 OF 6
Microstation File :-1200878psst3.dgn www.beveridgewilliams.com.au		PLAN REGISTERED TIME: 2:16 DATE: 29/8/17 Randall McDonald Assistant Registrar of Titles			

PS744342V

MGA94, ZONE 154

SEE SHEET 3

B



SEE SHEET 3



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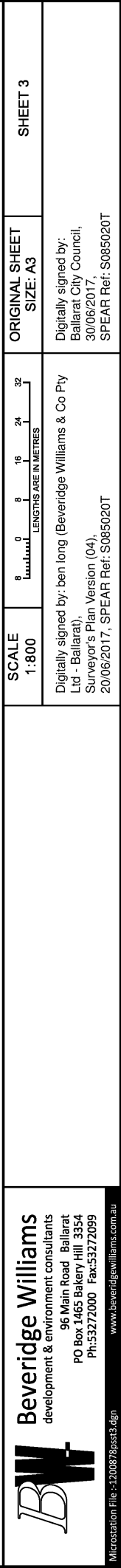


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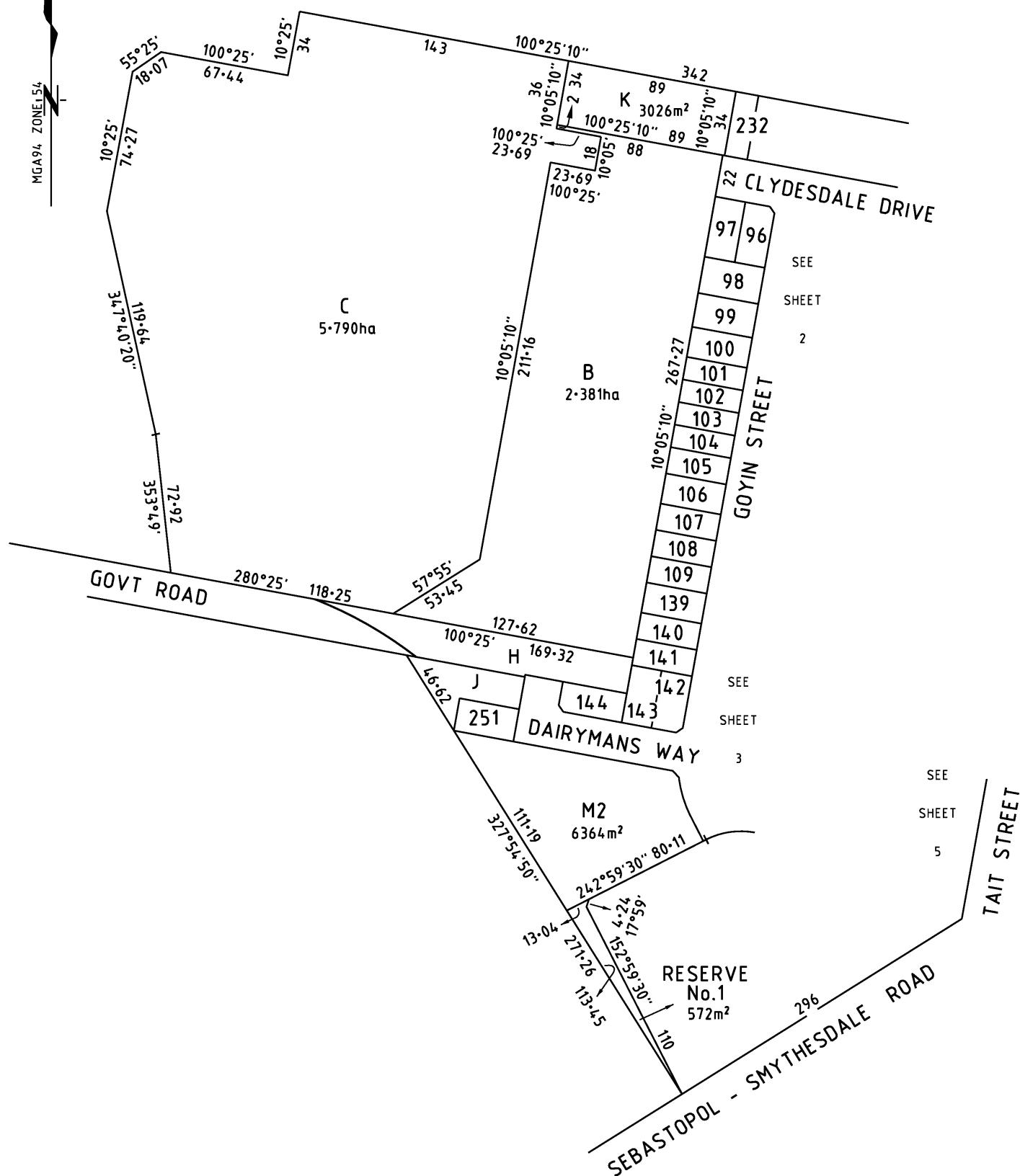
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SHEET 2

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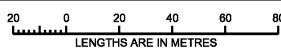


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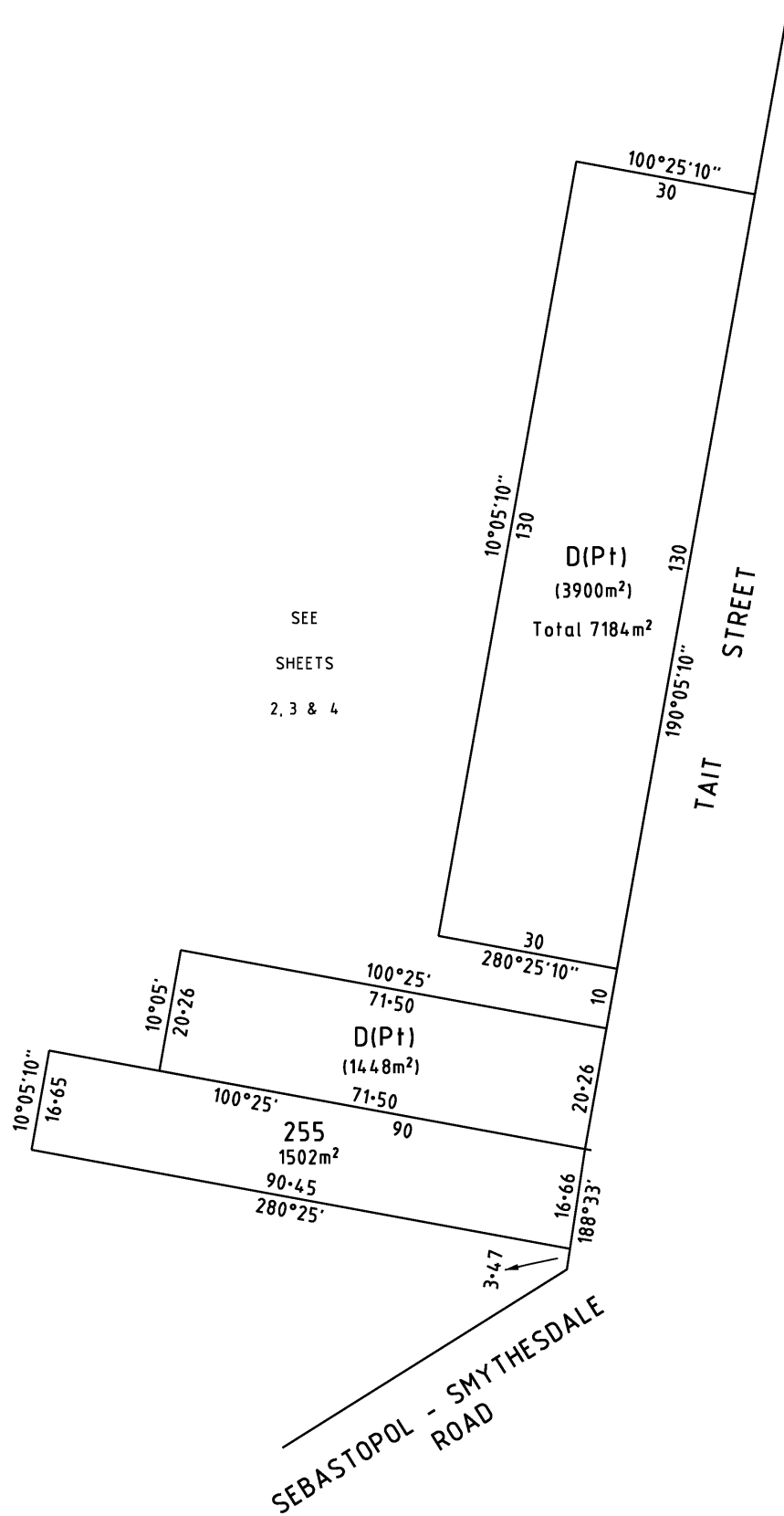
SHEET 4

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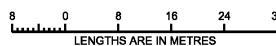
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MCA94 ZONE 54



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SHEET 5

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Creation of Restriction

The following restriction is to be created upon registration of this Plan of Subdivision by way of a restrictive covenant as a restriction defined in the Subdivision Act 1988.

Land to be Burdened

Lots on this plan

Land to Benefit

Lots on this plan

Description of Restriction

The registered proprietor of lots on this plan of subdivision shall not:

1. Construct or allow to be constructed on the Lot (excluding Lot M2) any buildings other than one single storey or two storey private dwelling house.
2. Construct or allow to be constructed on the Lot:-
 - (a) any buildings unless the exterior walls of the building are constructed of new materials being exposed brick, brick veneer or render, timber or manufactured timber-look products or non-reflective corrugated iron cladding;
 - (b) any outbuildings constructed of material other than substantially brick, brick veneer, stone manufactured timber-look products or non-reflective corrugated iron cladding.
3. Permit the Lot to remain without basic landscaping for more than six (6) months from the date of first occupancy of any house.
4. Permit the Lot to be used for the keeping of horses, sheep or pigs or other livestock except for domestic dogs or bona fide household pets or for the keeping of domestic pets which are controlled at all times and droppings from which are immediately cleaned from public areas other than the parcel of land of approximately 24,441 square metres in size located west of the Bonshaw Creek.
5. Construct or allow to be constructed on any Lot any prefabricated House.
6. Allow a constructed or partly constructed House to be moved onto the Lot.
7. Construct or allow to be constructed on the Lot any side or boundary fence unless the material is colourbond "Monument" colour fencing (both sides) and is to a height of 1.8 metres above natural ground.
8. Use or permit the Lot to be used for Panel Beating or Motor Vehicles repairs.
9. Further subdivide the Lot hereby transferred other than Lot M2 and that area of land which is subject to the Heritage Overlay being the land shown as 6,432 square metres on the Master Plan and formerly part of the Ploughmans' Arm Hotel.
10. Park or allow to be parked any vehicles, including trucks, motor bikes, boats, trailers, caravan and recreational vehicles on any nature strip or front yard.
11. Permit or allow the Lot hereby transferred to become or remain in an unsightly, untidy, unclean or unwholesome condition or appearance or be used in any manner which constitutes an annoyance, nuisance or disturbance to the registered proprietor or proprietors and occupiers for the time being of the Lots comprised in the Plan of Subdivision.
12. Allow any antennas, air conditioning units, satellite dishes, solar hearing storage drums or radio aerials to be installed or allowed on the Lot unless they are located at the rear of any roof structure and are no higher than the highest point of the roof of the dwelling house.
13. Construct or allow to be constructed any building on the Lot unless all plumbing pipes, apart from stormwater pipes are installed in the internal walls of any building.
14. Construct or allow to be constructed on the Lot any building unless it has a rainwater tank that meets the requirements of Central Highlands Water (generally specified in its publication Ballarat West PSP Potable Water Demand Target-Supplementary Guide April 2014 as amended) for the Ploughmans Arms Estate.
15. Construct a dwelling or fence on any corner lot unless both street frontages are addressed in the design to be in keeping with the neighbourhood streetscape.

Variations

Variation of these requirements will require planning approval from the Responsible Authority.



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SHEET 6

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